

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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RAHSHAD FRANCIS,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
ORLANDO CORCHADO, Shield No. 20667,
SERGEANT YOEL HIDALGO, POLICE OFFICER
CHRISTOPHER WHITE, Shield No. 8891, POLICE
OFFICER ANGEL CORDERO, Shield No. 22532,
DETECTIVE NICHOLAS CHABERT, POLICE
OFFICER LOIACONO, LIEUTENANT JOHN
GOGARTY, and POLICE OFFICERS JOHN DOES #1-10
(names and number of whom are unknown at present), and
other unidentified members of the New York City Police
Department,

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
March 2, 2018

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
POLICE OFFICER ORLANDO CORCHADO, Shield No. 20667
SERGEANT YOEL HIDALGO
POLICE OFFICER CHRISTOPHER WHITE, Shield No. 8891
POLICE OFFICER ANGEL CORDERO, Shield No. 22532
DETECTIVE NICHOLAS CHABERT
POLICE OFFICER LOIACONO
LIEUTENANT JOHN GOGARTY

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Plaintiff,

INDEX NO.:VERIFIED COMPLAINT

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(names and number of whom are unknown at present), and
other unidentified members of the New York City Police
Department,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff, RAHSHAD FRANCIS, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On or about November 11, 2015, at approximately 12:00 p.m., plaintiff Rahshad Francis, was falsely arrested and falsely imprisoned by the individually named defendant police officers inside of the 50th Precinct located at 3450 Kingsbridge Avenue, Bronx, New York. Furthermore, the individually named defendant police officers maliciously prosecuted plaintiff and denied plaintiff his right to a fair trial. Plaintiff was deprived of his constitutional and common law rights when the individually named defendant police officers falsely arrested, imprisoned, maliciously prosecuted, and denied a right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff RAHSHAD FRANCIS is a resident of the State of New York.

3. POLICE OFFICER ORLANDO CORCHADO, Shield No. 20667, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER ORLANDO CORCHADO, Shield No. 20667, is and was at all times relevant herein, assigned to the 50th precinct.

5. POLICE OFFICER ORLANDO CORCHADO, Shield No. 20667, is being sued in his individual and official capacities.

6. SERGEANT YOEL HIDALGO, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT YOEL HIDALGO, is and was at all times relevant herein, assigned to the 50th precinct.

8. SERGEANT YOEL HIDALGO, is being sued in his individual and official capacities.

9. POLICE OFFICER CHRISTOPHER WHITE, Shield No. 8891, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. POLICE OFFICER CHRISTOPHER WHITE, Shield No. 8891, is and was at all times relevant herein, assigned to the 50th precinct Detective Squad.

11. POLICE OFFICER CHRISTOPHER WHITE, Shield No. 8891, is being sued in his individual and official capacities.

12. POLICE OFFICER ANGEL CORDERO, Shield No. 22532, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. POLICE OFFICER ANGEL CORDERO, Shield No. 22532, is and was at all times relevant herein, assigned to the 50th precinct.

14. POLICE OFFICER ANGEL CORDERO, Shield No. 22532, is being sued in his individual and official capacities.

15. DETECTIVE NICHOLAS CHABERT, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. DETECTIVE NICHOLAS CHABERT, is and was at all times relevant herein, assigned to the 50th precinct Detective Squad.

17. DETECTIVE NICHOLAS CHABERT, is being sued in his individual and official capacities.

18. POLICE OFFICER LOIACONO, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. POLICE OFFICER LOIACONO, is and was at all times relevant herein, assigned to the 50th precinct.

20. POLICE OFFICER LOIACONO, is being sued in his individual and official capacities.

21. LIEUTENANT JOHN GOGARTY is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department,

22. LIEUTENANT JOHN GOGARTY, is and was at all times relevant herein, assigned to the 50th precinct Detective Squad.

23. LIEUTENANT JOHN GOGARTY, is being sued in his individual and official capacities.

24. New York City Police Officers JOHN DOES #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

25. Police Officers JOHN DOES #1-10 are being sued in their individual and official capacities.

26. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

27. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

28. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately

responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

29. Plaintiff in furtherance of her State causes of action filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

30. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

31. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

32. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

33. On November 11, 2015, at approximately 12:00 p.m., plaintiff Rahshad Francis, while lawfully inside of the 50th precinct located at 3450 Kingsbridge Avenue, Bronx, New York was unlawfully arrested without probable cause or legal justification by the defendant police officers.

34. By way of background, on or about October 29, 2015, plaintiff was finishing up work when his girlfriend showed up at his job.

35. Plaintiff's girlfriend was going to wait for plaintiff to finish work, and then they were going to leave together.

36. Plaintiff gave his girlfriend his laptop to hold while he finished up work.

37. Plaintiff finished work and went outside to leave with his girlfriend, however instead of waiting for him, plaintiff's girlfriend left and took plaintiff's laptop.

38. Notably, plaintiff's girlfriend did not have permission or authority from plaintiff to take his laptop.

39. Thereafter, plaintiff attempted to call his girlfriend to figure out where she was so he could get his laptop back from her.

40. After several attempts to call plaintiff's girlfriend, she finally picked up the phone and told him she took his laptop and went to her house.

41. Thereafter, on November 29, 2015, at approximately 11:00 p.m., plaintiff went to his girlfriend's house located in the Bronx, New York to get his laptop back from his girlfriend.

42. Upon arrival at plaintiff's home, plaintiff waited outside and called his girlfriend and told her to come downstairs to give him back his laptop.

43. Initially, plaintiff's girlfriend refused to give him back his laptop, and therefore plaintiff called 911 to report the theft of his laptop by his girlfriend.

44. Prior to the police arriving at the location, plaintiff's girlfriend finally came downstairs and gave plaintiff his laptop back.

45. As a result of stealing his laptop, plaintiff told his girlfriend that he is breaking up with her.

46. Plaintiff then hailed a cab and plaintiff's girlfriend got into the cab with plaintiff because she wanted to get some property she had left at plaintiff's house and since they were breaking up, she wanted her property back.

47. While they were in the cab, plaintiff's girlfriend was very upset since plaintiff broke up with her, and she was yelling and screaming at plaintiff.

48. Since plaintiff's girlfriend was yelling and screaming, the cab driver pulled over and told plaintiff's girlfriend to exit the cab, and she complied and exited the cab.

49. Plaintiff's girlfriend then walked back to her house, and when she returned to her house the police finally responded to the scene from plaintiff calling them.

50. In retaliation for breaking up with her, plaintiff's girlfriend falsely stated to the defendant police officers that plaintiff had struck her in the head while she was in the cab with him.

51. Notably, the defendant police officers knew that at no point in time did plaintiff's girlfriend call 911 to report this alleged assault by plaintiff, nor did plaintiff have any visible physical injuries, nor did plaintiff request or get any medical treatment whatsoever.

52. Despite knowing that plaintiff's girlfriend's complaint was not credible, the defendant police officers took plaintiff's girlfriend's complaint.

53. Thereafter, plaintiff spoke to plaintiff's girlfriend on the telephone and she told plaintiff that she made a false complaint to the defendant police officers that plaintiff hit her while they were in the cab.

54. In fact, plaintiff recorded a telephone conversation between him and his girlfriend, wherein, plaintiff's girlfriend admitted to plaintiff that she lied to the defendant police officers and fabricated the complaint to the police.

55. Thereafter, on November 10, 2015, plaintiff's girlfriend went with plaintiff to the 50th precinct and spoke with the defendant police officers, including defendant POLICE OFFICER LOIACONO.

56. Specifically, it is undisputed that during the conversation between plaintiff's girlfriend and the defendant police officers, plaintiff's girlfriend unequivocally recanted her allegations against plaintiff.

57. It is also undisputed that after plaintiff's girlfriend recanted her false allegations against plaintiff, plaintiff was arrested on November 10, 2015 by the defendant police officers and charged with filing a false report against plaintiff.

58. Notably, while plaintiff was at the 50th precinct on November 10, 2015 he was not arrested because the defendant police officers knew that plaintiff's girlfriend had made a false complaint against plaintiff and that plaintiff had in fact not committed any crime.

59. On the morning of November 11, 2015, plaintiff received a phone call from the defendant police officers asking him to come to the 50th precinct to tie up some loose ends related to the false allegations made by plaintiff's girlfriend.

60. On November 11, 2015, plaintiff went to the 50th precinct located at 3450 Kingsbridge Avenue, Bronx, New York.

61. Upon arrival the 50th precinct, plaintiff was unlawfully handcuffed and arrested without legal justification and probable cause.

62. Based upon all of the objective facts known to the defendant police officers, no reasonable police officer could believe that plaintiff had committed any crime.

63. Specifically, at the time of plaintiff's arrest, the defendant police officers were aware that on November 10, 2015, plaintiff's girlfriend recanted her allegations and admitted to the defendant police officers that she fabricated the allegations about plaintiff assaulting her.

64. In fact, after plaintiff's girlfriend recanted her allegations and admitted that she fabricated the allegations against plaintiff, the defendant police officers arrested plaintiff's girlfriend on November 10, 2015 for filing a false police report.

65. As such, it is clear that on November 11, 2015, the defendant police officers were aware that plaintiff's previous allegations were false and the defendant police officers did not have probable cause or legal justification to arrest plaintiff.

66. In addition, on November 11, 2015, the defendant police officers listened to the tape recorded conversation between plaintiff and plaintiff's girlfriend, wherein she admitted to fabricating the complaint to the police.

67. Nevertheless, the defendant police officers unlawfully handcuffed plaintiff and falsely arrested and imprisoned her without legal justification or probable cause.

68. Plaintiff was unlawfully fingerprinted and photographed by the defendant police officers at the Precinct and placed in a holding cell.

69. While at the precinct, the defendant police officers falsely communicated to the Bronx County District Attorney's Office that plaintiff committed a crime.

70. Specifically, the defendant police officers falsely stated to the District Attorney's Office that plaintiff assaulted plaintiff's girlfriend despite knowing that plaintiff's girlfriend had recanted her allegations and admitted to the defendant police officers that she had falsified the allegations against plaintiff.

71. The individually named defendant police officer's arrest paperwork related to plaintiff's arrest that was forwarded to the Bronx County District Attorney's Office intentionally withheld several exculpatory facts, including the fact that plaintiff was in possession of a tape recorded conversation, wherein plaintiff's girlfriend admitted to fabricating the allegations against plaintiff.

72. Thereafter, on November 11, 2015, plaintiff was then transported to Bronx Central Booking.

73. On November 11, 2015, after approximately 12 hours in custody, plaintiff was arraigned in Bronx Criminal Court and the Judge released plaintiff on his own recognizance.

74. Thereafter, plaintiff appeared in Court on approximately 13 occasions before all charges were dismissed by motion of the District Attorney on December 6, 2016.

75. As a result of the unlawful arrest, plaintiff was forced to miss approximately 13 days of work.

76. Some of the defendant police officers observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the false imprisonment, false arrest, malicious prosecution, and denial of a fair trial.

77. The false arrest, false imprisonment, malicious prosecution, and denial of fair trial to sustain severe physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

78. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, falsely arrested and imprisoned, maliciously prosecuted, and denied a right to a fair trial. without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and in violation of plaintiff's right to due process under the Fifth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

Malicious Prosecution

80. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

81. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

82. Defendants commenced and continued a criminal proceeding against plaintiff related to the underlying arrest of plaintiff.

83. There was actual malice and an absence of probable cause by defendants for the criminal proceedings against plaintiff and for each of the charges for which he was prosecuted.

84. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

85. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

86. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

87. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Denial of Right to Fair Trial

88. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 87 with the same force and effect as if more fully set forth at length herein.

89. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

90. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

91. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

92. In withholding/creating false evidence against plaintiff Rahshad Francis and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

93. As a result of the foregoing, plaintiff Rahshad Francis, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

95. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

96. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 95 with the same force and effect as if more fully set forth at length herein.

97. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Rahshad Francis, including but not limited to maliciously prosecuting plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

98. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

99. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

100. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

101. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 100 with the same force and effect as if more fully set forth at length herein.

102. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

SIXTH CAUSE OF ACTION

Failure to Intervene

103. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 102 with the same force and effect as if more fully set forth at length herein.

104. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other defendant police officers.

105. Defendants failed to intervene to prevent the unlawful conduct described herein.

106. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

107. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

108. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

False Arrest and False Imprisonment

109. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 108 with the same force and effect as if more fully set forth at length herein.

110. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

111. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

112. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

113. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

114. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

JURY DEMAND

115. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Rahshad Francis demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the costs of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
March 2, 2018

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
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ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
March 2, 2018

/s/
STUART E. JACOBS